

23SMCV03060 23SMCV03060

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Case Number: 23SMCV03060 Hearing Date: September 28, 2026 Dept: P

Tentative

Ruling

Patricia

Valencia v. Flow Health Services, LLC, et al., Case No. 23SMCV03060

Plaintiff's

Motion for Leave to Amend to File First Amended Complaint

Hearing

Date: September 28, 2026

Background

On July 7, 2023, Plaintiff Patricia Valencia ("Valencia") sued her former employer and supervisor, Defendants Flow Health Services LLC and Adonis Salazar ("Salazar"), for harassment under FEHA and intentional infliction of emotional distress. Valencia alleges that Defendants retaliated after she reported that Salazar made inappropriate advances at work and touched her without her consent. (Complaint, ¶ 14, 19, 22.)

On January

7, 2026, Valencia filed this Motion to Compel Salazar's Deposition. Salazar has not filed opposition. On April 27, 2026, Valencia filed a notice of non-opposition. On May 1, 2026, Salazar filed a declaration in response to Valencia's Motion to Compel.

On January

20, 2026, Flow Health Services filed a notice of Stay of Proceedings pending Bankruptcy.

On April

1, 2026, Plaintiff amended the complaint to name Flow Health Holdings, LLC as a Doe defendant.

On April 15,

2026, Plaintiff amended the complaint to name Flow Health Holdings, LLC and Alex Meshkin as Doe defendants.

On April

15, 2026, Flow Health Laboratories filed a notice of Stay of Proceedings pending bankruptcy.

On August

21, 2026, Flow Health Holdings filed a demurrer to the complaint.

On

September 1, 2026, Plaintiff filed this Motion for Leave to Amend. On September 15, 2026, Flow Health Holdings filed opposition. On September 18, 2026, Plaintiff replied.

Arguments

Plaintiff

seeks leave to amend to add additional Doe allegations identifying Flow Health Holdings, LLC, Flow Health Laboratories, LLC, Alex Meshkin, and Signal Diagnostics, LLC; to add and expand alter-ego, agency, successor, and fraudulent-transfer allegations; and to add a cause of action for fraudulent conveyance in violation of the California Uniform Voidable Transactions Act, Civil Code section 3439 et seq. (Motion for leave to amend, p. 3.)

In

opposition to this motion, Flow Health Holdings argues that the Plaintiff's declaration attached to the motion for leave to amend does not satisfy the requirements of Rule 3.1323(a) because it does not explain the delay in amending the complaint or explain changes to the complaint. (Opposition, pp. 5-6.) Flow Health Holdings also argues that the proposed first amended

complaint's FEHA claims may be deficient because the proposed FAC does not attach documents it purports to attach. (Id. at p.7.)

In reply,

Plaintiff attaches a supplemental declaration explaining that the Flow Health Services' January 2026 bankruptcy prompted her to begin investigating related entities and assets and add them to this action. Plaintiff argues that these facts are newly discovered and support the motion for leave to amend.

Motion

for Leave to Amend

The trial

court has discretion to allow amendments to pleadings in the furtherance of justice. (Code Civ. Proc. § 473, subd. (a)(1).) "Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading." (Code Civ. Proc. § 576.) "There is a policy of great liberality in permitting amendments to the pleadings at any stage of the proceeding." (Berman v. Bromberg (1997) 56 Cal.App.4th 936, 945 [citations omitted].) "An application to amend a pleading is addressed to the trial judge's sound discretion." (Ibid. [citations omitted].) A judge may deny a motion for leave to amend where a moving party has been dilatory in seeking leave to amend and such delay has prejudiced the opposing party. (Hirsa v. Superior Court (1981) 118 Cal.App.3d 486, 490 ("Hirsa").) "It is difficult to understand how [a named defendant] can be prejudiced by amendment to add an additional theory of liability against it." (Ibid.)

"[I]t is

an abuse of discretion to deny leave to amend where the opposing party [is] not misled or prejudiced by the amendment." (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048 ("Kittredge").) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation. (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448 ("Solit").)

A motion

for leave to amend must include a separate declaration specifying: "(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4)

The reasons why the request for amendment was not made earlier.” (Cal. Rules of Court, Rule 3.1324(b).) A motion for leave to amend must “[i]nclude a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments.” (Cal. Rules of Court, Rule 3.1324(a)(1).) Moreover, a motion to amend must “[s]tate what allegations in the previous pleading are proposed” to be deleted or added, if any, and must set forth the page, paragraph, and line number of such allegations. (Cal. Rules of Court, Rule 3.1324(a)(2)-(3).)

Discussion

First,

this action is not stayed against Flow Health Holdings because Flow Health Services and Flow Health Laboratories’ notices of deposition only stayed this action against those entities. A bankruptcy stay does not automatically stay proceedings against co-defendants not in bankruptcy. (*Higgins v. Superior Court* (2017) 15 Cal.App.5th 973, 981, fn. 14.)

Normally,

the Court does not consider evidence submitted in reply. Here, however, Plaintiff’s initial motion for leave to amend described the circumstances that lead to this motion for leave to amend. The supplemental declaration provides additional details but does not materially change Plaintiff’s argument. With the additional information provided in the supplemental declaration, the motion satisfies Rule 3.1324’s requirements.

Plaintiff

discovered the newly-named defendants and the new claim for fraud after Flow Health Services entered bankruptcy. Plaintiff promptly added the new defendants to this action. Plaintiff now seeks to elaborate on her allegations against the new defendants. Flow Health Holdings makes no argument that the amendment will prejudice it or that this motion was brought with undue delay. Additionally, this case is not yet at issue and is partially stayed. There is no prejudice to Defendants.

Flow

Health Holdings also argues that the proposed FAC fails to state claims against it. The sufficiency of the FAC’s claims are issues better addressed on a demurrer.

Conclusion

Plaintiff's

Motion for Leave to Amend is GRANTED.